

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE BILL 3906

By: Hefner of the House

5 and

6 **Gillespie** of the Senate

7
8
9 AS INTRODUCED

10 An Act relating to supported decision-making;
11 enacting the Oklahoma Supported Decision-Making Act;
12 providing purpose; defining terms; providing how
13 individual may enter into and terminate a supported
14 decision-making agreement; authorizing supporter to
15 assist in certain tasks; prohibiting supporter from
16 committing certain acts; authorizing supporter to
17 assist principal in obtaining certain information;
18 prohibiting supported decision-making agreement to be
19 used as certain evidence at trial; authorizing adult
20 to act independently of the agreement; providing that
21 a decision or request made may be enforced by the
22 principal or supporter; authorizing persons to rely
23 on certain presumptions; relieving certain persons of
24 civil or criminal liability; providing that nothing
 shall affect the requirement to report abuse,
 neglect, exploitation, isolation, or abandonment;
 providing example form for a supported decision-
 making agreement; providing for codification; and
 providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1451 of Title 10, unless there
3 is created a duplication in numbering, reads as follows:

4 This act shall be known and may be cited as the "Oklahoma
5 Supported Decision-Making Act".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1452 of Title 10, unless there
8 is created a duplication in numbering, reads as follows:

9 A. The purpose of this act is to:

10 1. Provide person-centered and directed assistance to an adult
11 with a disability to gather and assess information, make informed
12 decisions, and communicate decisions;

13 2. Give supporters legal status to be with such an adult and
14 participate in discussions with others when the adult is making
15 decisions or attempting to obtain information; and

16 3. Enable supporters to assist in making and communicating
17 decisions for such an adult but not substitute as the decision-maker
18 for the adult.

19 B. This act shall be interpreted in accordance with the
20 following principles:

21 1. An adult should be able to live in the manner in which he or
22 she wishes and to accept or refuse support, assistance, or
23 protection as long as the adult does not harm himself, herself, or
24 others and is capable of making decisions about such matters;

1 2. An adult should be able to be informed about and, to the
2 best of his or her ability, participate in the management of his or
3 her affairs;

4 3. An adult should receive the most effective, yet least
5 restrictive and intrusive, form of support, assistance, or
6 protection when the adult is unable to manage his or her affairs
7 alone; and

8 4. The values, beliefs, wishes, cultural norms, and traditions
9 that an adult holds should be respected in managing his or her
10 affairs.

11 SECTION 3. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1453 of Title 10, unless there
13 is created a duplication in numbering, reads as follows:

14 As used in the Supported Decision-Making Act, unless a different
15 meaning is clearly required by the context:

16 1. "Adult" means a natural person who is eighteen (18) years of
17 age or older;

18 2. "Affairs" means personal, health care, or financial matters
19 arising in the course of activities of daily living, including,
20 without limitation:

21 a. matters in which an adult makes decisions relating to
22 his or her health, including, without limitation:

23 (1) monitoring the adult's health,
24

1 (2 obtaining, scheduling, and coordinating health
2 and support services,

3 (3) understanding health care information and
4 options, and

5 (4) making personal decisions to provide for the
6 adult's care and comfort, and

7 b. financial matters in which an adult manages his or her
8 income and assets and the use thereof for clothing,
9 support, care, comfort, education, shelter, or the
10 payment of his or her liabilities;

11 3. "Covered education agreement" means a supported decision-
12 making agreement that is entered into for the sole purpose of
13 providing supported decision-making related to the supported
14 person's education and the Individuals with Disabilities Education
15 Act, approved April 13, 1970 (84 Stat. 175; 20 U.S.C., Section 1400
16 et seq.), or Section 504 of the Rehabilitation Act of 1973, approved
17 September 26, 1973 (87 Stat. 394; 29 U.S.C., Section 794);

18 4. "Electronic" means relating to technology having electrical,
19 digital, magnetic, wireless, optical, electromagnetic, or similar
20 capabilities;

21 5. "Person" means a natural person, health care facility,
22 provider of health care, corporation, partnership, limited-liability
23 company, association, joint venture, public corporation, government
24

1 or governmental subdivision, agency or instrumentality, or any other
2 legal or commercial entity;

3 6. "Principal" means an adult who seeks to enter, or has
4 entered, into a supported decision-making agreement with one or more
5 supporters pursuant to this act;

6 7. "Record" means document, book, paper, photograph, microfilm,
7 computer tape, disk, record, sound recording, film recording, video
8 record, electronic files and documents, or other material;

9 8. "Sign" means:

- 10 a. to execute or adopt a tangible symbol with the present
11 intent to authenticate a record, or
12 b. to attach or logically associate an electronic symbol,
13 sound, or process to or with a record with the present
14 intent to authenticate the record;

15 9. "Support services" means a coordinated system of social and
16 other services that are supplied by private, state, institutional,
17 or community providers and are designed to help maintain the
18 independence of an adult, including, without limitation:

- 19 a. homemaker services, such as house repair, cleaning,
20 laundry, shopping, and providing meals,
21 b. companion services, such as transportation and the
22 facilitation of written, oral, and electronic
23 communication,
24 c. medical services,

- d. visiting nurse and attendant care,
- e. physical and psychosocial assessments,
- f. financial assessments and advisement relating to banking, taxes, loans, investments, or the management of real property,
- g. legal assessments and advisement,
- h. educational services, including, without limitation, educational assessments and advisement,
- i. personal care services, including, without limitation, assistance with daily activities such as bathing, dressing, and eating,
- j. care planning,
- k. residential, employment, or day program services and supports, including, without limitation, training, or career planning, and
- l. other services necessary to maintain the independence of an adult;

10. "Supported decision-making agreement" means an agreement between a principal and one or more supporters that is entered into pursuant to this act; and

11. "Supporter" means a person who is named in a supported decision-making agreement to provide specified assistance to a principal.

1 SECTION 4. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1454 of Title 10, unless there
3 is created a duplication in numbering, reads as follows:

4 A. An adult may enter into a supported decision-making
5 agreement at any time if the adult:

6 1. Enters into the agreement voluntarily and without coercion
7 or undue influence; and

8 2. Understands the nature and effect of the agreement.

9 B. A supported decision-making agreement shall:

10 1. Be in writing;

11 2. Be dated;

12 3. Designate one or more supporters;

13 4. List the types of decisions with which the supporter is
14 authorized to assist the principal;

15 5. List the types of decisions, if any, with which the
16 supporter is not authorized to assist the principal; and

17 6. Be signed by each party to the agreement in the presence of
18 at least two adult witnesses.

19 C. A principal or a supporter may terminate a supported
20 decision-making agreement at any time, either verbally or in
21 writing, and with notice to the other parties to the agreement.

22 SECTION 5. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1455 of Title 10, unless there
24 is created a duplication in numbering, reads as follows:

1 A. Except as otherwise provided in a supported decision-making
2 agreement and subsection B of this section, a supporter may do all
3 of the following:

4 1. Assist the principal in understanding information, options,
5 responsibilities and consequences of the principal's life decisions,
6 including, without limitation, decisions relating to the principal's
7 affairs or supportive services;

8 2. Help the principal access, obtain, and understand any
9 information that is relevant to any given life decision, including,
10 without limitation, medical, psychological, financial, or
11 educational decisions, or any treatment records or records necessary
12 to manage the principal's affairs or support services;

13 3. Assist the principal in finding, obtaining, making
14 appointments for, and implementing the principal's support services
15 or plans for support services;

16 4. Help the principal monitor information about the principal's
17 affairs or support services, including, without limitation, keeping
18 track of future necessary or recommended services; and

19 5. Ascertain the wishes and decisions of the principal, assist
20 in communicating those wishes and decisions to other persons, and
21 advocate to ensure that the wishes and decisions of the principal
22 are implemented.

23 B. A supporter is prohibited from doing any of the following:
24

1 1. Exerting undue influence upon, or making decisions on behalf
2 of, the principal;

3 2. Obtaining, without the consent of the principal, information
4 that is not reasonably related to matters with which the supporter
5 is authorized to assist the principal pursuant to the supported
6 decision-making agreement; and

7 3. Using, without the consent of the principal, information
8 acquired for a purpose other than assisting the principal to make a
9 decision pursuant to the supported decision-making agreement.

10 C. A supporter shall act with the care, competence and
11 diligence ordinarily exercised by persons in similar circumstances,
12 with due regard to the supporter's possession or lack of special
13 skills or expertise.

14 SECTION 6. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1456 of Title 10, unless there
16 is created a duplication in numbering, reads as follows:

17 A. In addition to the activities set forth in Section 5 of this
18 act, a supporter may assist the principal with obtaining any
19 information to which the principal is entitled, including, without
20 limitation, a signed and dated specific consent, protected health
21 information under the Health Insurance Portability and
22 Accountability Act of 1996, Public Law 104-191, as amended, or
23 educational records under the Family Educational Rights and Privacy
24

1 Act of 1974, 20 U.S.C., Section 1232g, and any regulations adopted
2 pursuant thereto.

3 B. A supporter shall ensure that all information collected on
4 behalf of a principal pursuant to this section is:

- 5 1. Kept privileged and confidential, as applicable;
- 6 2. Not subject to unauthorized access, use, or disclosure; and
- 7 3. Properly disposed of when appropriate.

8 SECTION 7. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 1457 of Title 10, unless there
10 is created a duplication in numbering, reads as follows:

11 The existence of a supported decision-making agreement that is
12 entered into by an adult and one or more supporters pursuant to this
13 act may not be used as evidence of the adult's incapacity, as
14 defined in Section 3002 of Title 58 of the Oklahoma Statutes, and
15 does not preclude the ability of the adult to act independently of
16 the agreement.

17 SECTION 8. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1458 of Title 10, unless there
19 is created a duplication in numbering, reads as follows:

20 A decision or request made or communicated by a principal with
21 the assistance of a supporter in accordance with this act shall, for
22 the purposes of any provision of law, be recognized as the decision
23 or request of the principal and may be enforced by the principal or
24

1 supporter in law or equity on the same basis as a decision or
2 request of the principal.

3 SECTION 9. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1459 of Title 10, unless there
5 is created a duplication in numbering, reads as follows:

6 Any person who is not a party to a supported decision-making
7 agreement, including, without limitation, a provider of health care
8 or provider of financial services, that in good faith, as defined in
9 Section 3002 of Title 58 of the Oklahoma Statutes, accepts a
10 supported decision-making agreement:

11 1. Without actual knowledge that any of the signatures thereon
12 is not genuine may rely upon the presumption that such a signature
13 is genuine;

14 2. Without actual knowledge that the supported decision-making
15 agreement or the purported supporter's authority is void, invalid,
16 or terminated may rely upon the supported decision-making agreement
17 as if the agreement and supporter's authority are genuine, valid,
18 and still in effect; and

19 3. Is not subject to civil or criminal liability or discipline
20 for unprofessional conduct for giving effect to a declaration
21 contained within the supported decision-making agreement or for
22 following the direction of a supporter named in the supported
23 decision-making agreement.

1 Address: _____

2 Phone / Email: _____

3 SUPPORTER(S)

4 Name of Supporter: _____

5 Relationship: _____

6 Phone / Email: _____

7 Name of Additional Supporter (optional): _____

8 Relationship: _____

9 Phone / Email: _____

10 AREAS OF SUPPORT

11 Initial each subject you would like your designated supporter(s) to
12 assist you in understanding, making, and communicating decisions.

13 (___) Health care and medical decisions

14 (___) Mental health services

15 (___) Education, including college, IDEA, and Section 504

16 (___) Employment and vocational services

17 (___) Financial matters, including budgeting and banking, but not
18 including control of funds

19 (___) Housing and community living

20 (___) Government or public benefits

21 (___) Other: _____

22 LIMITATIONS

23 My supporter(s) MAY NOT assist with the following decisions (if
24 any):

SUPPORTER AUTHORITY

The supporter may assist the principal by:

1. Helping understand information and options;
2. Helping obtain records, including, but not limited to, HIPAA and FERPA, with consent;
3. Attending meetings at the request of the principal; and
4. Helping communicate the principal's decisions.

The supporter MAY NOT make decisions for the principal or override the principal's wishes.

VOLUNTARY AGREEMENT

I affirm that I am entering this agreement voluntarily, understand its purpose, and may terminate it at any time.

TERMINATION

This agreement may be terminated at any time by the principal or any supporter, verbally or in writing.

SIGNATURES

Principal Signature: _____

Date: _____

Supporter Signature: _____

Date: _____

Additional Supporter Signature (if applicable): _____

Date: _____

WITNESSES

1 Witness #1 Name & Signature: _____

2 Date: _____

3 Witness #2 Name & Signature: _____

4 Date: _____"

5 SECTION 12. This act shall become effective November 1, 2026.

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7 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
8 OVERSIGHT, dated 02/26/2026 - DO PASS, As Coauthored.

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